

PLJ 2018 Lahore 134

Present: MASUD ABID NAQVI, J.

MUHAMMAD AKRAM etc.--Petitioners

versus

SCRUTINY COMMITTEE, DISTRICT SARGODHA, PAKISTAN

CRICKET BOARD etc.--Respondents

W.P. No. 39416 of 2016, decided on 19.10.2017.

Constitution of Pakistan, 1973--

----Art. 199--Constitutional jurisdiction--Scope--Validity--It should not be invoked where alternative forum under a special law, duly empowered to decide controversy is available and functioning. Where a special law provides legal remedy for the resolution of a dispute, the intention of legislature in creating such remedy is that disputes falling within ambit of such forum be taken only before it for resolution--Petition was dismissed. [P. 136] A

2016 SCMR 842, *ref.*

Mr. Abdul Razzaq Rajab, Advocate for Petitioners.

Mr. Taffazal H. Rizvi, Advocate for PCB.

Date of hearing: 19.1.2017.

ORDER

Aggrieved by the letter dated 25.08.2016, findings of the scrutiny committee wherein petitioners' cricket clubs were declared "inactive" due to the cricket clubs' failure to adopt the model Constitution of Pakistan Cricket Board ("PCB"), the petitioners filed appeals before the Election Commission of PCB which were dismissed *vide* order dated 02.11.2016. Thereafter, the petitioners filed appeals before the Board of Governor of PCB under Para 37(2) of the PCB Constitution and impugned the letter dated 25.08.2016 as well as order dated 02.11.2016 but the same were returned with the objection to annex/attach demand draft amounting to Rs. 100,000/- with each of the appeal *vide* order dated 16.11.2016. Through this petition, the petitioners have not only challenged the orders dated 25.08.2016, 02.11.2016 and 16.11.2016 being illegal, unlawful but also Para 37 of the PCB Constitution and clause 3 of conduct proceedings as against their fundamental rights.

2. Learned counsel for the petitioners states that the scrutiny committee miserably failed to properly conduct the scrutiny and findings of scrutiny committee are based on *mala fide* intention/ulterior motives as the petitioners' cricket clubs adopted the model Constitution in letter and spirit. The petitioners stance has not been properly taken into consideration/evaluated by the Election Commission of PCB while passing the order dated 02.11.2016. Further adds that Para 37 of the PCB Constitution and clause 3 of conduct proceedings with the condition to enclose demand

draft amounting to Rs. 100,000/- with each of the appeal is against their fundamental rights as this condition defeats the concept of easy access to justice. Conversely, learned counsel for respondent PCB submits that petitioners adopted the proper legal procedure by filing appeals but were returned due to their failure to annex/attach the demand draft amounting to Rs. 100,000/- with each of the appeal. Instead of properly availing that remedy, the petitioners invoked the jurisdiction of this Court under Article 199(1) of the Constitution of Pakistan. Further submits that the provisions of the Constitution of the PCB have already been upheld by the Hon'ble Supreme Court of Pakistan in a case reported as *M/o IPC through Secretary and others v. Arbab Altaf Hussain and others* (2014 SCMR 1573) and by the Islamabad High Court, Islamabad in W.P.No. 3644-2014. Therefore, instant petition is liable to be dismissed.

3. I have heard the learned counsel for the parties and perused the available record.

4. Perusal of record reveals that scrutiny committee conducted the scrutiny of the petitioners' cricket clubs from 18th to 21st August, 2016 and declared petitioners' cricket clubs as "inactive" *vide* letters dated 25.08.2016 due to their failure to adopt the model Constitution. Their appeals were also dismissed by the Election Commission of PCB *vide* order dated 02.11.2016. Thereafter, by adopting the proper legal procedure, the petitioners filed appeals before the Board of Governor of PCB under Para 37(2) of the PCB Constitution and the same were returned with the objection to annex/attach a demand draft amounting to Rs. 100,000/- *vide* order dated 16.11.2016. Instead of fulfilling the requirements for filing appeals, the petitioners have filed instant petition. The petitioners adopted the proper legal procedure by filing appeals but were returned due to their failure to attach/annex the demand draft amounting to Rs. 100,000/- with each of the appeal. It is important to mention here that each party is responsible to pay the cost of proceedings and petitioners' share of cost is Rs. 100,000/- which is liable to be refunded, in case the appeal is allowed by the independent adjudicator. Instead of properly availing that remedy, the petitioners invoked the jurisdiction of this Court under Article 199(1) of the Constitution of Pakistan.

It is well settled proposition of law that the jurisdiction under Article 199 of the Constitution should not be invoked where alternative forum under a special law, duly empowered to decide the controversy is available and functioning. Where a special law provides legal remedy for the resolution of a dispute, the intention of the legislature in creating such remedy is that the disputes falling within the ambit of such forum be taken only before it for resolution. Such circumvent of the proper forum is contrary to the intention of the provisions of Article 199(1) of the Constitution which confers jurisdiction on the High Court only when there is no adequate remedy available under any law. Efficacious remedy is available to the petitioners for adjudication of the controversy involving disputed questions of facts by initiating proceedings against any act(s), if any, of the respondents by filing appeal before the adjudicators. In this regard, an extract of citation reported

as *Indus Trading and Contracting. Company v. Collector of Customs (Preventive) Karachi and others* (2016 SCMR 842) provides the guidance which is reproduced hereunder:

“The very purpose of creating a special forum is that disputes should reach expeditious resolution headed by quasi-judicial or judicial officers who with their specific knowledge, expertise and experience are well equipped to decide controversies relating to a particular subject in a shortest possible time. Therefore, in spite of such remedy being made available under the law, resorting to the provisions of Article 199(1) of the Constitution, as a matter of course, would not only demonstrate mistrust on the functioning of the special forum but it is painful to know that High Courts have been over-burdened with a very large number of such cases. This in turn results in delays in the resolution of the dispute as a large number of cases get decided after several years. These cases ought to be taken to forum provided under the Special Law instead of the High Courts. Such bypass of the proper forum is contrary to the intention of the provisions of Article 199(1) of the Constitution which confers jurisdiction on the High Court only and only when there is no adequate remedy is available under any law. Where adequate forum is fully functional, the High Courts must deprecate such tendency at the very initial stage and relegate the parties to seek remedy before the special forum created under the special law to which the controversy relates.”

Insofar as second segment of the prayer clause is concerned, the petitioners have challenged the provisions of the Constitution of the PCB which have already been upheld by the Hon’ble Supreme Court of Pakistan in a case reported as *M/o IPC through Secretary and others v. Arbab Altaf Hussain and others* (2014 SCMR 1573) and by the Islamabad High Court, Islamabad in W.P. No. 3644-2014. Therefore, this matter cannot be reopened before this Court.

5. In view of above detailed discussion, this petition is dismissed.

(W.I.B.) W.P. Dismissed